

**PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR AUGUST 27, 2026, AT 8:30 A.M.**

9. S-CV-0053944 IN RE THE PETITION OF DANIELLE SCHNEIDER

Petition for Approval of Minor's Compromise Claim

The court continued the matter on April 23, 2026, for petitioner to file a supplemental declaration that attaches the proposed annuity terms for the court's consideration. However, the supplemental declaration filed with the court on July 17, 2026, does not include the proposed annuity terms. Thus, the court cannot determine whether the proposed annuity is in the best interest of the minor. Accordingly, the petition for approval of minor's compromise claim is denied without prejudice.

10. S-CV-0057600 LALLISS, STEVEN v. HARRIS, LORENZO

Plaintiff's Motion for Leave to Amend Complaint

Preliminary Matters

The court observes defendant's moving and reply papers exceed the page limit delineated in California Rules of Court, Rule 3.1113, subdivision (d). The court admonishes defendant to adhere to the applicable California Rules of Court for future filings.

Defendant's requests for judicial notice are granted as to the existence of the documents but not any inferences drawn therefrom.

Plaintiff's requests for judicial notice are granted.

Plaintiff's objections are overruled in their entirety.

Defendant's objections are overruled in their entirety.

Ruling on Motion

Defendant moves to strike the entirety of plaintiff's complaint—which includes causes of action for (1) defamation; (2) public disclosure of private facts; (3) breach of fiduciary duty; (4) bad faith invasion of privacy; and (5) false light invasion of privacy—pursuant to Code of Civil Procedure section 425.16.

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A motion brought under Code of Civil Procedure section 425.16, also known as an anti-SLAPP motion, is a procedural remedy designed to dispose of lawsuits that are brought primarily to chill the valid exercise of a party's constitutional right of petition or free speech. (Code Civ. Proc. § 425.16(a); see also *Sylmar Air Conditioning v. Pueblo Contracting Svcs., Inc.* (2004) 122 Cal.App.4th 1049, 1055-1056.) In determining whether an action or claim is a SLAPP suit subject to a special motion to strike, the court evaluates first whether the claim arises out of the defendant's protected speech or petitioning activity, and second whether plaintiff can show a probability of success on the merits. (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 88-89.) Defendant has the burden of proof to show that plaintiff's claims arise from defendant's exercise of free speech or petition rights as defined in Code of Civil Procedure section 425.16(e). (*Equilon Enterprises, LLC v. Consumer Cause, Inc.* (2002) 29 Cal.4th 53, 61.) "When relief is sought based on allegations of both protected and unprotected activity, the unprotected activity is disregarded at this stage. If the court determines that relief is sought based on allegations arising from activity protected by the statute, the second step is reached." (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 396.) The second step shifts the burden to plaintiffs to establish a probability of prevailing on the claim. (*Governor Gray Davis Committee v. American Taxpayers Alliance* (2002) 102 Cal.App.4th 449, 458-459.) At the second step "the court's responsibility is to accept as true the evidence favorable to the plaintiff [citation] and evaluate the defendant's evidence only to *determine if it has defeated that submitted by the plaintiff as a matter of law*. [Citations.] The trial court merely determines whether a prima facie showing has been made that would warrant the claim going forward." (*Blanchard v. DIRECTV, Inc.* (2004) 123 Cal.App.4th 903, 918 [emphasis in original].)

Defendant argues each cause of action arises from acts by defendant in furtherance of his right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue. Code of Civil Procedure section 425.16(e) further defines "acts in furtherance of a person's right of petition or free speech" as used in section 425.16(b) to include:

- (1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in

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furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.

Defendants' motion appears to invoke section 425.16, subdivision (e)(3).

In assessing whether the first prong has been met, the court analyzes whether defendant's acts underlying plaintiff's cause of action *itself* was an act in furtherance of the right of free speech, not simply whether protected activity took place. (*City of Cotati v. Cashman* (2002) 29 Cal.4th 69, 78; *Navellier v. Sletten, supra*, 29 Cal.4th at 89.) Where, as here, subdivision (e)(3) is invoked, defendant must also demonstrate the alleged statements were made in connection with an issue of public interest.

Here, defendant satisfies his burden as to the first prong because he presents evidence that the alleged statements to third parties were made in a public forum of the Homeowner's Association meeting and in connection with an issue of public interest of elections to the Homeowner's Associations board of directors. (*Cabrera v. Alam* (2011) 197 Cal.App.4th 1077, 1088–92.)

The burden therefore shifts to plaintiffs to establish that each challenged claim based on the protected activity is legally sufficient and factually substantiated. (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 396.) However, plaintiffs do not meet their burden as to any of the causes of action.

Accordingly, defendants' motion is granted without leave to amend.

Defendant may file a separately noticed motion for attorney's fees. (Code Civ. Proc., § 425.16, subd. (c)(1).)

11. S-CV-0057858 HATAMI, JULIE v. HARTFORD, JOHN

Plaintiffs/Judgment Creditors' Motion to Reopen Hearing on Application for Order for Sale of Dwelling, and Adjacent Vacant Lot; Or, Alternatively, for Reconsideration

On July 9, 2026, the court denied plaintiffs/judgment creditors' motion for order for sale of dwelling without prejudice because there was insufficient evidence the dwelling at issue was levied on, a levying officer served defendant/judgment debtor with notice of the levy, or plaintiffs/judgment creditors brought the application within 20 days of the notice of levy being served on the judgment debtor.